

M/S G.L. Foods Unit Flour Mill v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 11 February 2022 · Writ-C No. 718 of 2022 ·
Writ disposed; pending clause 6.5 representation to be decided within three weeks

HEADNOTE

The Lucknow Bench disposed of a writ seeking correction of commercial electricity bills that included arrears for a notified closure period. Accepting that such a grievance is redressed under clause 6.5 of the U.P. Electricity Supply Code, 2005, and noting that a representation was already pending, the Court directed that the representation be decided expeditiously, preferably within three weeks of production of an attested copy of the order.

FACTUAL SUMMARY

M/S G.L. Foods Unit Flour Mill held an electricity connection for commercial consumption. Its industrial unit remained closed from 1 July 2021 to 30 September 2021, of which due intimation was stated to have been given to opposite parties nos. 3 and 4. The unit was reactivated from September 2021, but regular bills were raised inclusive of arrears for the period the unit was not operated. The consumer filed an application for correction of those bills and had already made a representation, placed as Annexure 5 to the writ petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Pending bill-correction representation under clause 6.5

HOLDING

Accepting that correction of electricity bills is to be redressed in the manner prescribed by clause 6.5 of the U.P. Electricity Supply Code, 2005, and noting that the consumer had already made a representation, the Court disposed of the writ without deciding the bills and directed that the pending representation be decided expeditiously, preferably within three weeks from presentation of an attested copy of the order along with the representation. ¶ 3-6

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The consumer's representation for correction of arrears-inclusive bills (Annexure 5) was already pending; the Court directed that it be decided expeditiously, preferably within three weeks of production of an attested copy of the order with the representation. ¶ 4-5

clause-6.5-alternate-remedy-to-writ On the submission that bill-correction grievances are redressed under clause 6.5, the writ was disposed of without a decision on the bills, leaving the pending representation to be decided. ¶ 3-6

bill-correction-clause-6.5 The application sought correction of regular bills that included arrears for the closure period; the Court treated that grievance as one for redressal under clause 6.5. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLS, INCLUSIVE OF ARREARS FOR THE CLOSURE FROM 1 JULY 2021 TO 30 SEPTEMBER 2021, WERE LIABLE TO BE CORRECTED

The Court did not examine the bills or the claimed intimation of closure, and left both to the authority deciding the pending representation. ¶ 2-5

